

A
M E A S U R E

PASSED BY

The National Assembly of the Church of England.

To consolidate with amendments the New Parishes Acts, 1843 to 1884, to repeal such of the provisions of the Church Building Acts, 1818 to 1884, as authorise the formation of new ecclesiastical districts or as are obsolete, and to re-enact with amendments other provisions of the last mentioned Acts, and for purposes connected with the matters aforesaid.

[4th February 1943]

PART I.

NEW PARISHES.

Constitution of New Parishes and Districts.

1.—(1) The Ecclesiastical Commissioners (in this Measure referred to as "the Commissioners"), if satisfied that the spiritual interests of any area in which a consecrated church exists or is intended to be provided would be best served by constituting the area a new parish and that a suitable endowment thereof has been or will be provided, may with the consent of the bishop and subject to compliance with the provisions of this section prepare and submit to His Majesty in Council a scheme constituting the area a new parish as from such date as is hereinafter mentioned.

Power to
constitute
new parishes.

(2) The date as from which the area is to become a new parish shall be—

- (a) if in the area there exists at the time of the sealing of the scheme a consecrated church approved by the Commissioners as suitable to be the parish church, the date when the Order in Council confirming the scheme comes into operation ;
- (b) if there is no such church, the date of the consecration of a church within the area approved by the Commissioners as suitable to be the parish church, or if the church was consecrated before such approval, the date of the approval ;

and in the former case the scheme shall designate such existing church as the parish church, and in the latter case the scheme shall provide that until the consecration or approval of such a church the area shall be a separate district for spiritual purposes.

(3) The scheme shall define the area, which may consist of the whole or any part or parts of any one or more ecclesiastical districts or extra-parochial places, and the scheme shall have annexed thereto a map of the area, a copy whereof sealed by the Commissioners shall be filed in the registry of the diocese.

(4) The scheme shall declare the name which the new parish and, if a district is temporarily created, which the district is to bear, and may contain such other incidental and auxiliary provisions (including directions as to the diocese, archdeaconry and rural deanery to which the parish or district is to belong) as appear to the Commissioners necessary or proper.

(5) Before the scheme is settled, copies of a draft thereof in the form in which it is proposed to be settled shall be served on the incumbent, parochial church council and patron of the ecclesiastical district, or each of the incumbents, parochial church councils and patrons of the ecclesiastical districts if more than one, out of which the area in question is to be taken, and consideration shall be given to any objections to or observations on the proposals of the draft scheme which before the expiration of six weeks from the date of such service may be made to the Commissioners by any such incumbent, council or patron:

Provided that no alteration shall be made in the draft to meet any such objection or observation without the consent of the bishop.

Dissolution
of district if
church not
provided.

2.—(1) Where an area is by a scheme under section one of this Measure constituted a district but a church therefor approved by the Commissioners as suitable to be the parish church has not been provided and is not in the opinion of the Commissioners likely to be provided within a reasonable time, the Commissioners may, with the consent of the bishop and subject to compliance with the provisions of this section, prepare and submit to His Majesty in Council a scheme dissolving the district and providing for the incorporation of its area in the ecclesiastical district or districts out of which it was taken or in any other ecclesiastical district or districts.

(2) A scheme under this section shall provide for the disposal of any endowments provided for the district with due regard to the rights and interests of the persons by whom they were provided and may contain such other incidental and auxiliary provisions as appear to the Commissioners necessary or proper.

(3) Before a scheme under this section is settled, copies of a draft thereof in the form in which it is proposed to be settled

shall be served on every incumbent, parochial church council and patron affected thereby, and consideration shall be given to any objections to or observations on the proposals of the draft scheme which before the expiration of six weeks from the date of such service may be made to the Commissioners by any such incumbent, council or patron :

Provided that no alteration shall be made in the draft to meet any such objection or observation without the consent of the bishop.

(4) If at the time of confirmation of the scheme any person is minister of the district, the scheme shall not come into operation until he has ceased to be such minister.

(5) The scheme shall have annexed thereto a map showing every alteration of boundaries proposed to be effected by the scheme, and a copy of the map sealed by the Commissioners shall be filed in the registry of the diocese.

3.—Where an area is by a scheme under section one of this Measure constituted a district until the date when a church has been consecrated or approved, the following provisions shall have effect during that interval :—

Provisions
applicable
to district.

(1) A minister nominated by the patron of the district may be licensed thereto by the bishop and shall be styled " The minister of " according to the name of the district declared by the scheme :

(2) The minister shall have power to perform within the district all such offices, services and pastoral duties as may be specified in the bishop's licence, or any further licence of the bishop which may be issued on a building being licensed as hereinafter mentioned, independently of the incumbent of any ecclesiastical district any part of which is included in the area to which the scheme relates, and shall so far as may be authorised by the bishop's licence have the cure of souls in the district :

Provided that until the first minister is so licensed nothing in the scheme shall affect the pastoral supervision of the inhabitants of any part of any ecclesiastical district which is included in such area as aforesaid :

(3) The bishop may license any building in the district which he may consider proper for the purpose of the performance of divine service :

Provided that—

(a) nothing in this Measure shall authorise the bishop to include in such licence the solemnization of marriages ;

(b) the fee for such a licence shall be one pound and no more, payable to the secretary of the bishop :

- (4) The minister shall in all respects be subject to the jurisdiction of the bishop and archdeacon in whose diocese and archdeaconry the district is situated :
- (5) The minister shall only be removable from his office for the like reasons and in the same manner as a perpetual curate is by law removable :
- (6) The minister shall be a body corporate by the name aforesaid with power to hold without licence in mortmain any property granted to him by way of endowment of the benefice :
- (7) The constitution of the district shall not affect any right of publishing banns, solemnizing marriages or performing burials in any church, or of receiving any fees in respect thereof, or any right of marriage or burial in any church or burial ground, or any right to occupy any seat in any church being a right which would have existed had the district not been so constituted :
- (8) When on the consecration or approval of a church in the district the district becomes a new parish, the licence of such building as aforesaid shall become void, and the minister of the district shall without any further process or form of law become the incumbent of the new parish, but nothing in such change of status or title shall affect his corporate capacity.

Provisions
applicable to
new parish.

4. On the area defined by the scheme becoming a new parish, whether immediately on the coming into operation of the Order in Council confirming the scheme or on the date of the consecration or approval by the Commissioners of a church in the area, the following provisions shall have effect :—

- (1) The church designated by the scheme or the church so consecrated or approved (as the case may be) shall be the parish church, and it shall be lawful to publish banns, solemnize marriages and perform other ecclesiastical offices therein :
- (2) The new parish shall be a perpetual curacy and a benefice with cure of souls to all intents and purposes, and shall be known as "The parish of _____" according to the name of the parish declared in the scheme, and the person (if any) who immediately before the church became the parish church was the incumbent thereof (otherwise than by virtue of his incumbency of an ecclesiastical district out of which the new parish was formed) or was the minister of the district shall become the first incumbent of the benefice and shall have power to hold without licence in mortmain any property granted to him by way of endowment of the benefice :

- (3) The incumbent of the benefice shall, saving the rights of the bishop, have sole and exclusive cure of souls and the exclusive right of performing all ecclesiastical offices within the limits of the new parish for the resident inhabitants therein, and the right of receiving upon the performance of any such offices as aforesaid such fees as may be fixed by the Commissioners :
- (4) The resident inhabitants of the new parish shall for all ecclesiastical purpose be the parishioners of the new parish and of no other parish ; provided that unless or until a burial ground has been provided for the new parish nothing in this section shall affect any right of burial :
- (5) The new parish shall for all ecclesiastical purposes possess the same rights and privileges and be affected by the same liabilities as are incident or belong or attach to a separate parish for ecclesiastical purposes and no other liabilities :
- (6) Where any person resident in the new parish has claimed or has had assigned to him sittings in the church of the new parish, the claim or assignment shall operate as a surrender of any right he may have possessed in an equal number of sittings in the church of any ecclesiastical district out of which the new parish has been taken unless those sittings are held by faculty or under an Act of Parliament.

5.—(1) The Commissioners, on the application of the incumbent of any church to which an ecclesiastical district existing at the time of the passing of this Measure belongs, may with the consent of the bishop by order authorise the publication of banns, the solemnization of marriages, and the performance of other ecclesiastical offices therein, and thereupon all fees payable in respect thereof as well as all other ecclesiastical dues and fees arising within the limits of the district shall become payable to the incumbent thereof.

Conversion of existing districts into new parishes.

(2) Where all or any part of the fees and other ecclesiastical dues arising within an ecclesiastical district or payable in respect of marriages, churchings and burials in the church thereof have been reserved, or, if an order had not been made under the preceding sub-section, would of right belong, to the incumbent of any other ecclesiastical district out of which the ecclesiastical district in question has been formed or to the clerk thereof, the incumbent of the last mentioned district to whom such fees are made payable shall keep an account thereof, and he shall every three months

pay them over to the incumbent or clerk who would have been entitled thereto until—

- (a) in the case of ecclesiastical dues and fees appertaining to the incumbent, the next avoidance of such incumbency or the relinquishment of his right thereto by the incumbent ;
- (b) in the case of fees appertaining to the clerk, until the clerkship becomes vacant or compensation in lieu of such fees has been awarded to the clerk.

After the happening of such contingency as aforesaid all such fees shall belong to the incumbent of the ecclesiastical district in which they arise and to the clerk thereof.

(3) Whenever banns are authorised to be published and marriages, churchings and baptisms are authorised to be solemnized and performed within any church to which an ecclesiastical district belongs and the incumbent is entitled for his own benefit to the fees arising from the performance of these offices without any reservation thereof, the district shall become a separate parish for ecclesiastical purposes as if it had been constituted a new parish under this Measure, and all the provisions of this Measure relating to new parishes upon their becoming such shall apply to the district and the church as if the district had been constituted a new parish by a scheme under this Measure.

Power to
apportion
endowments
on consti-
tution of
new parish.

6.—(1) Where a new parish or district is formed out of one or more ecclesiastical districts, it shall be lawful for the Commissioners with the consent of the patron and incumbent of any ecclesiastical district concerned, to prepare and submit to His Majesty in Council a scheme apportioning the endowments of any such ecclesiastical district between that district and the new parish or district formed wholly or partly out of it in such manner as may be provided by the scheme.

(2) The scheme may define the date from which or the event upon the happening of which the apportionment shall take effect and may make such regulations and arrangements as may be necessary for completing the apportionment and the re-settlement of the endowments.

Power of
Ecclesiastical
Commis-
sioners to
compensate
for loss of
fees, &c.
3 & 4 Vict.
c. 113.

7. The power conferred on the Commissioners by section sixty-seven of the Ecclesiastical Commissioners Act, 1840 of making out of their common fund better provision for the cure of souls shall extend to authorise the assigning to any incumbent or clerk whose fees or other emoluments are diminished in consequence of any proceeding under this Measure (or any proceeding taken before the passing of this Measure under the New Parishes Acts, 1843 to 1884) of such compensation as appears to the Commissioners to be reasonable.

8. It shall not be lawful after the passing of this Measure to constitute any district under any of the provisions of the Church Building Acts, 1818 to 1884, or of section twenty-six of the Pluralities Act, 1838, and all the provisions of those Acts relating to such districts shall cease to have effect, but as respects any district constituted under any of the said provisions which exists at the passing of this Measure and has not become a new parish by virtue of section fourteen of the New Parishes Act, 1856, nothing in this section or any repeal effected by this Measure shall, until the date when by virtue of section five of this Measure the district becomes a new parish, affect—

Cesser of other powers of constituting new parishes and districts. 1 & 2 Vict. c. 106. 19 & 20 Vict. c. 104.

- (a) the status of the district or the status, style, tenure or rights of the incumbent of any church ;
- (b) any right of patronage ;
- (c) any right of performing any office in any church ;
- (d) any right of being married in any church or of being buried in any burial ground ;
- (e) any right to ecclesiastical dues or fees ;
- (f) any right as to sittings in any church ;

but all such matters shall until such date as aforesaid be regulated as if this section had not been passed :

Provided that where before the passing of this Measure proceedings have been commenced for constituting a district under any of the said provisions, the proceedings may be continued and the district constituted as if this Measure had not been passed, and the district shall for the purposes of this section be treated as if it had been a district existing at the passing of this Measure.

Provisions as to Patronage.

9.—(1) Where it is proposed that an existing church should become the parish church of a new parish to be constituted under this Measure, then, for the purpose of facilitating effect being given to the proposal, it shall be lawful—

Power to make agreements as to patronage.

- (a) for any corporation, whether lay, ecclesiastical or collegiate, and whether sole or aggregate, or any person being or having the powers of a tenant for life, or the committee or receiver of a person of unsound mind, or any trustees or other person acting in a fiduciary capacity, entitled to any right of patronage of the said church to enter into an agreement in writing with the Commissioners and the bishop as to the surrender or exercise or transfer of the right either unconditionally or on such conditions as may be agreed ;

- (b) for the trustees of any endowment for the benefit of the said church or the incumbent thereof to enter into an agreement with the Commissioners and the bishop for the transfer of the endowment and any such agreement and any instrument under seal executed in pursuance thereof shall be good notwithstanding anything in any Act or Measure or in any instrument creating or regulating the trust.

(2) At any time before the consecration of a new church it shall be lawful for the bishop to enter into an agreement in writing with the patron and incumbent of the ecclesiastical district in which the new church has been or is intended to be erected as to the person by whom the patronage of the new church after consecration is to be exercised, and any such agreement shall, upon registration in the diocesan registry and notwithstanding anything in any Act or Measure, be valid and effectual to vest the right of patronage according to the agreement.

Patronage of
new districts
and parishes.

10.—(1) Subject to any agreement made under the last preceding section, the right of patronage of any new parish or district constituted by scheme under this Measure shall belong to the bishop—

- (a) unless or until such right has been otherwise wholly assigned or except so far as such right has been otherwise assigned ; or
- (b) unless an existing church becomes the parish church of the new parish and the right of patronage of that church belongs to a person other than the bishop.

(2) Any right of patronage by this section vested in the bishop shall be exercisable by the issue of a licence to a spiritual person to be incumbent of the parish or district in like manner as a spiritual person may by law be licensed by him to a perpetual curacy.

(3) The fee for the bishop's licence shall be one pound and no more, payable to the secretary of the bishop.

New rights of
patronage to
be unsaleable.

11. Any new right of patronage created under this Measure shall be incapable of sale and any transfer thereof for valuable consideration shall be invalid.

Churchwardens.

Church-
wardens.

12.—(1) In every district or new parish constituted under this Measure, and in every ecclesiastical district constituted before the commencement of this Measure under the Church Building Acts, 1818 to 1884 or the New Parishes Acts, 1843 to 1884, two fit and proper persons shall annually be appointed as churchwardens.

(2) A person so to be appointed must be of full age and must either be a member of the Church of England resident in such district or parish or be a person whose name is on the electoral roll thereof.

(3) The churchwardens shall be chosen at a joint meeting (convened in manner provided by section thirteen of the Parochial Church Councils (Powers) Measure, 1921) of the parochial church meeting of the parish or district and the persons who if the parish or district were an ancient parish would be entitled to vote at the election of a churchwarden. They shall be chosen by the joint consent of the incumbent and the meeting, if it may be ; otherwise, one shall be chosen by the incumbent and the other elected by the other persons present and entitled to vote at the meeting. 11 & 12 Geo. 5.
No. 1.

(4) Every person so appointed shall be duly admitted and may do all things pertaining to the office of churchwarden in relation to ecclesiastical matters within the parish or district.

PART II.

GENERAL PROVISIONS APPLICABLE TO ALL ECCLESIASTICAL DISTRICTS.

Acquisition of land for church sites, &c.

13.—(1) The Commissioners may acquire by way of gift, devise or purchase, and may hold without licence in mortmain and notwithstanding anything in the Mortmain and Charitable Uses Act, 1888, or any Act amending that Act— Power of
Ecclesiastical
Commis-
sioners to
acquire land
for churches,
&c.
51 & 52 Vict.
c. 42.

- (a) any building fit to be used as or to be converted into a church ;
- (b) any land as a site for a new church or for a church to be substituted for an existing church, or for enlarging the site of an existing church ;
- (c) any land for providing a new or extending an existing churchyard or burial ground ;
- (d) any building or land for or for an extension of a house of residence for an incumbent or other ecclesiastical person ;
- (e) any land required for providing access to or improving the amenities of any such church, churchyard, burial ground or house of residence.

(2) The Commissioners may accept gifts and bequests of money to be laid out in the purchase of land for any of the purposes aforesaid, and may hold the land so purchased without licence in mortmain and notwithstanding anything in the Mortmain and Charitable Uses Act, 1888, or any Act amending that Act.

(3) Any conveyance of land under this section shall be in such form as the Commissioners may prescribe

Power of corporations &c., to give or grant land for sites of churches, &c.

14.—(1) It shall be lawful for any of the following bodies by way of gift or for valuable consideration, and notwithstanding that the consideration may not be the full consideration, to grant to the Commissioners buildings or land for any of the purposes mentioned in the last foregoing section, that is to say—

- (a) any corporation, whether lay, ecclesiastical or collegiate, and whether sole or aggregate ;
- (b) any trustees for charitable purposes ;
- (c) in the case of buildings or land belonging to His Majesty in right of the Crown or of the Duchy of Lancaster, or belonging to the Duchy of Cornwall or belonging to a government department or held in trust for His Majesty for the purposes of a government department the appropriate authority, that is to say—
 - (i) in the case of land belonging to His Majesty in right of the Crown, the Commissioners of Crown Lands or other government department having the management of the land in question, subject to the consent, in either case, of the Treasury ;
 - (ii) in the case of land belonging to His Majesty in right of the Duchy of Lancaster, the Chancellor of the Duchy ;
 - (iii) in the case of land belonging to the Duchy of Cornwall, the Duke of Cornwall or the possessor for the time being of the Duchy of Cornwall ;
 - (iv) in the case of land belonging to a government department or held in trust for His Majesty for the purposes of a government department, that department, with the consent of the Treasury.

(2) Where the grantor is the incumbent of a benefice in his capacity as such, the purchase money if it exceeds twenty pounds shall be paid to Queen Anne's Bounty and be appropriated by them for the benefit of the benefice in like manner as if it had been provided by them out of the funds at their disposal for the augmentation of benefices, and if it does not exceed twenty pounds it may be paid to the incumbent for his own use and benefit.

(3) It shall be lawful for any person to devise or bequeath to the Commissioners and for the Commissioners to hold any property real or personal for any such purpose as aforesaid or as an endowment of any benefice.

Provisions as to land subject to rights of

15.—(1) Where the land to be acquired by the Commissioners for any of the purposes mentioned in section thirteen of this Measure forms part of any common or of the waste of any manor,

the lord of the manor may grant the land, and the conveyance thereof shall be effectual for vesting in the Commissioners the fee simple of the land as if every person having any right of common in or over the land had joined in the conveyance :

common or
to rents
or other
periodical
charges.

Provided that no such grant shall be made without the consent of the Minister of Agriculture and Fisheries, and the Minister in giving or withholding his consent shall have regard to the same considerations, and shall, if necessary, hold the same inquiries as are directed by the Commons Act, 1876, to be taken into consideration and held by him before forming an opinion whether an application under the Inclosure Acts shall be acceded to or not.

(2) Where it appears to the Minister of Agriculture and Fisheries that any rights of common will be substantially affected, he shall as a condition of giving his consent require that compensation shall be paid to the persons entitled to such rights, and in such case sections ninety-nine to one hundred and seven of the Lands Clauses Consolidation Act, 1845, shall be incorporated with this Measure and shall apply as if the Commissioners were the promoters of the undertaking. 8 & 9 Vict. c. 18.

(3) Where the land to be acquired by the Commissioners for any of the purposes aforesaid forms part of land subject to any rent or other annual or recurring charge and it appears to the Commissioners and the grantor of the land that the part of the land to be retained is of ample value to bear the said rent or charge, the part to be granted to the Commissioners may be conveyed to them free from the rent or charge, and the remaining part shall continue to be liable therefor in the same manner as the whole land was originally liable, and the Commissioners are hereby authorised to do all such acts as may be necessary to give effect to this provision.

16.—(1) Where any land or building which before or after the passing of this Measure was acquired by the Commissioners or the Church Building Commissioners for any of the purposes mentioned in section thirteen of this Measure, or any part of such land or building, is not in the opinion of the Commissioners and the bishop required for the purposes for which it was acquired, then, if the land was acquired for valuable consideration, it shall be lawful for the Commissioners to sell such land or building or part thereof :

Powers of
Ecclesiastical
Commis-
sioners of
dealing with
land acquired.

Provided that, in the case of land so acquired before the passing of this Measure, before offering any such land for sale the Commissioners shall offer to resell it to the person from whom it was acquired, or the person to whom it would have belonged if it had not been so acquired, at such price as failing agreement may be determined by arbitration.

If the person having such right of pre-emption refuses the offer or does not accept it within six weeks after it was made, the right shall cease, and a statutory declaration made by any officer of the Commissioners authorised by them for the purpose that the offer has been refused or not accepted within the time aforesaid shall be sufficient evidence of the facts stated therein.

(2) It shall be lawful for the Commissioners to exchange any land so acquired whether for valuable consideration or by way of gift for any other land more suitable for the purpose for which the original land was acquired and to receive or pay money by way of equality of exchange.

(3) Where any land was so acquired by way of gift, it shall be lawful for the Commissioners to reconvey it to the grantor or his successors in title without consideration.

(4) It shall be lawful for the Commissioners to appropriate any land so acquired whether for valuable consideration or by way of gift (if and so far as it has not been appropriated to, or is no longer required for, the purpose for which it was acquired) to any other ecclesiastical purpose for the benefit of the ecclesiastical district in which the land is situate, or for any educational, charitable or public purpose relating to that district :

Provided that if the land was acquired by way of gift or for a nominal consideration, such appropriation shall not be made without the consent of the grantor or his successors in title, except that no such consent shall be necessary where the purpose for which the appropriation is made is the widening of a highway by a highway authority.

(5) Nothing in this section shall authorise the sale or disposal by the Commissioners of any consecrated land.

(6) Nothing in this Measure shall restrict or limit the powers of sale or disposal conferred by the Union of Benefices Measures, 1923 to 1936, the Parsonages Measure, 1938, or the Ecclesiastical Leasing Acts or any Act or Measure extending or amending the same.

1 & 2 Geo. 6.
No. 3.

Vesting in
incumbent of
land acquired
by Eccle-
siastical Com-
missioners.

17. Where any land has been acquired by the Commissioners for any of the purposes mentioned in section thirteen or fourteen of this Measure, then—

(a) if the land was acquired as a site for a church it shall on the consecration of the church vest in the incumbent thereof for the time being ;

(b) if the land was acquired as a burial ground then, subject to the provisions of section twenty of this Measure, the land shall on the consecration of the burial ground vest in the incumbent for the time being of the ecclesiastical district to which the burial ground belongs ;

- (c) if the land was acquired for a house of residence of the incumbent of an ecclesiastical district or of any other ecclesiastical person serving a church of that district or as an endowment of a benefice, the land shall vest in the incumbent for the time being of the district;
- (d) if the land was acquired for providing access to or for improving the amenities of any church, churchyard, burial ground or house of residence, the land shall vest in the incumbent for the time being in whom such church, churchyard, burial ground or house of residence is vested.

18. No deed of gift, grant, security, contract, agreement, conveyance or other instrument made for any of the purposes mentioned in this Measure or under any of the provisions mentioned in this Measure, or for carrying into execution any powers, regulations or provisions thereof or therein mentioned shall be liable to stamp duty. Exemption from stamp duty.

19.—(1) No conveyance of land to the Commissioners under this Measure and no instrument to which the consent of the Commissioners is required under this Measure shall be valid unless and until the assent of the Commissioners is testified by affixing thereto the seal of the Commissioners, but on the affixing of such seal the conveyance or instrument shall have effect as from the date thereof. Instruments required to be sealed by Ecclesiastical Commissioners.

(2) No instrument to which the seal of the Commissioners is so required to be affixed and which is directed to be registered in any diocesan registry shall be so registered unless and until such seal has been so affixed.

Burial Grounds.

20.—(1) Where land is acquired by the Commissioners for the purpose of a burial ground for two or more ecclesiastical districts, it shall be lawful for the Commissioners in accepting the conveyance of the land to direct by the conveyance or any other instrument under their seal that any chapel erected on the land for the performance of the burial service, and any lodge or other building erected thereon, and any access to or from the chapel or any such building shall be for the use of each of the districts. Provisions as to burial ground common to two or more districts.

(2) The incumbent of each such district shall, subject to such regulations as may be made by the bishop, be entitled to use the chapel for the performance of the burial service, and the like fees shall be chargeable as would have been chargeable had the burial service been performed in the church of the district and the burial taken place in a burial ground belonging solely to that district.

(3) If after the consecration of such a burial ground additional land adjoining or near to it is acquired by the Commissioners as a burial ground for any of the districts for which the original burial ground was acquired or for any other ecclesiastical district, the chapel may, subject to such regulations as aforesaid, be used for the performance of the burial service in the case of persons to be buried in the additional ground, and every such lodge or other building and approach or access as aforesaid may similarly be used.

(4) The freehold of the chapel on the consecration thereof and the freehold of any such lodge, buildings and means of access on the erection or construction thereof shall vest in the bishop :

Provided that such vesting shall not impose on the bishop any liabilities for the maintenance of any such chapel, lodge, building or means of access.

(5) The Commissioners may in any case, and shall, if different parts of the land were acquired by them for the use of the several districts, apportion the burial ground exclusive of such chapel, lodge, buildings and means of access, amongst the several districts.

Power of
Ecclesiastical
Commissioners
to declare
land outside
district
acquired
as burial
ground to
be part of
district.

21. Where the Commissioners acquire, by gift or purchase, for a new or additional burial ground land not within the limits of the ecclesiastical district or districts for the use of which the land has been acquired, it shall be lawful for the Commissioners in accepting the conveyance of the land to declare in the conveyance, or by any other instrument under their seal, that the land, after consecration thereof as a burial ground, shall be deemed for ecclesiastical purposes (including the purpose of determining the right of burial therein) to be part of the district or districts for the use of which it has been so acquired ; and after consecration the land shall for such purposes as aforesaid be deemed to be part of the district or districts according to the said declaration.

Miscellaneous.

Substitution
of new church
for parish
church.

22.—(1) Where the Commissioners are satisfied that it would be for the convenience of the inhabitants of a parish or other ecclesiastical district that for the parish church or principal church of the district (hereinafter referred to as "the old church") there shall be substituted some other church already erected in the parish or district and duly consecrated (hereinafter referred to as "the new church"), the Commissioners may, with the consent of the bishop and of the patron and incumbent of the old church, by instrument under their seal declare that the new church shall be substituted for the old church, and upon such substitution taking effect the new church shall be to all intents and purposes in lieu of the old church.

(2) The instrument may provide—

- (a) for the transfer to the new church or to the incumbent thereof of all the endowments belonging to or held in trust for the old church or the incumbent thereof ;
- (b) for constituting the incumbent of the old church incumbent of the new church without any presentation, collation, institution, induction or other form of law ;
- (c) for constituting the patron of the old church the patron of the new church ;
- (d) for authorising the performance in the new church of all such offices of the church as could be performed in the old church ;
- (e) for transferring to the new church all registers and other documents kept in the old church ;
- (f) for securing to persons entitled to sittings in the old church a corresponding right to sittings in the new church ;

and the instrument may contain such incidental supplementary and consequential provisions (including provisions as to the manner in which claims to rights to sittings and other rights are to be determined) as may appear necessary or expedient for the purposes of this section.

(3) Where the patronage of the new church belongs to some person other than the patron of the old church—

- (a) the instrument shall not be made unless the patron of the new church consents ;
- (b) the instrument shall not take effect until the next avoidance of the incumbency of the new church unless the incumbent of that church consents.

(4) On the substitution of the new church for the old church the old church shall become a chapel of ease :

Provided that the bishop may declare that the church is no longer required for the purposes of divine service, and in that case subsection (2) of section nineteen of the Union of Benefices Measure, 1923 and sections twenty to twenty-four of that Measure shall apply.

14 & 15 Geo. 5.
No. 2.

23.—(1) The Commissioners, if satisfied that an alteration of the boundaries of any ecclesiastical district is desirable, may, with the consent of the bishop and subject to compliance with the provisions of this section, prepare and submit to His Majesty in Council a scheme for effecting such an alteration, and the scheme when confirmed shall be valid in law for the purpose of substituting the altered boundaries for the boundaries previously existing.

Power of
altering
parochial
boundaries.

(2) The scheme shall define and shall have annexed thereto a map showing the new boundaries, and a copy of the map sealed by the Commissioners shall be filed in the registry of the diocese.

(3) Before the scheme is settled, copies of a draft thereof in the form in which it is proposed to be settled shall be served on the incumbent, parochial church council and patron of each of the ecclesiastical districts affected, and consideration shall be given to any objections to or observations on the proposals of the draft scheme which before the expiration of six weeks from the date of such service may be made to the Commissioners by any such incumbent, council or patron :

Provided that no alteration shall be made in the draft to meet any such objection or observation without the consent of the bishop.

(4) The powers conferred by this section shall be in addition to and not in derogation of the powers of altering boundaries conferred by section twenty-six of the Pluralities Act, 1838 or the Union of, Benefices Measure, 1923, as amended by any subsequent Act or Measure.

Parish
names.

24.—(1) Where by virtue of the New Parishes Acts, 1843 to 1884, the name of any parish at the passing of this Measure is "The new parish of " then as from the passing of this Measure the word "new" shall be omitted from the name of the parish.

(2) Where it appears to the Commissioners that the name of any ecclesiastical district should be changed, the Commissioners may with the consent of the bishop and parochial church council of the district prepare and submit to His Majesty in Council a scheme declaring that the name of the district shall be altered to such name as is specified in the scheme.

Publication
of banns.

25. Where the publication of banns of matrimony has been duly commenced in any church; the publication may be completed in the same church or in any other church which at the time of such completion has taken the place of the first mentioned church for the publication of banns of matrimony either generally or in relation to the parties to the intended marriage.

Exclusion of appli-
cation of certain
enactments to
appointment of first
incumbent of new
parish, &c.
61 & 62 Vict. c. 48.
21 & 22 Geo. 5. c. 3.

26. In relation to the appointment of a person to be first incumbent of a new parish or first minister of a district constituted by scheme under this Measure, neither subsection (2) of section two of the Benefices Act, 1898, nor the Benefices (Exercise of Rights of Presentation) Measure, 1931, shall apply.

PART III.

SUPPLEMENTAL.

27. Every scheme made by the Commissioners under this Application to Measure shall be submitted to His Majesty in Council and shall not have effect unless and until confirmed by Order in Council, and all the provisions of the Ecclesiastical Commissioners Acts, 1840 to 1885 relating to the schemes and orders prepared, made and issued for the purposes of those Acts shall apply to schemes made under this Measure as if re-enacted therein and in terms made applicable thereto : Application to schemes of provisions of Ecclesiastical Commissioners Acts.

Provided that it shall not be necessary in pursuance of the provisions so applied to publish in the *London Gazette* the map annexed to any scheme made under this Measure.

28. Where under this Measure any notice or other document is required to be served on, or there is required the consent of, any incumbent, parochial church council or patron, the provisions of the Union of Benefices Measure, 1923 and the rules made thereunder relating to such service and consent shall apply as if herein re-enacted and in terms made applicable to this Measure. Provisions as to service of documents on and consents by incumbents and patrons.

29.—(1) In this Measure unless the context otherwise requires— Interpretation.

the expression "bishop" in relation to any church, parish, district or other area or place means the bishop of the diocese in which the church, parish, district or other area or place is situated, or if the parish, district, area or place is situated partly in one diocese and partly in another, the bishop of each such diocese ;

the expression "ecclesiastical district" includes any parish whether ancient or new, and any district formed under the Church Building Acts, 1818 to 1884, or the New Parishes Acts, 1843 to 1844, or this Measure, and any other ecclesiastical parish or district the minister whereof has a separate cure of souls ;

the expression "ecclesiastical dues" includes offerings and oblations ;

the expression "full consideration" means the best consideration that could reasonably be expected to be obtained ;

the expression "house of residence" includes the site thereof and any land occupied or to be occupied therewith as a garden or glebe ;

the expression "incumbent" includes any minister with cure of souls ;

the expression "land" includes any hereditaments corporeal or incorporeal of any tenure.

(2) The provisions of the Pluralities Act, 1838 as to the persons who are to be deemed patrons and section thirty-nine of the Union of Benefices Measure, 1923 as to the determination of doubtful questions of patronage shall apply for the purposes of this Measure.

(3) In the case of any parish or place in which there is no church nor any person known to be or claiming to be patron of the ancient church or advowson (if any) of the parish or place, the parish or place shall for the purposes of the provisions of this Measure relating to the constitution of new parishes and districts be treated as if it were an extra parochial place.

(4) This Measure shall apply to any new parish or district constituted before the passing of this Measure under the New Parishes Acts, 1843 to 1884, as if it had been constituted under the corresponding provisions of this Measure.

Saving as
to parishes
regulated by
Local Acts.

30.—(1) Nothing in this Measure as to the formation of new parishes and districts shall authorise the inclusion in any new parish or district of any part of a parish regulated by a Local Act where such inclusion would be inconsistent with that Local Act unless a representation in favour of such inclusion is made to the Commissioners by the patron, the incumbent and the parochial church council of the parish.

13 & 14 Vict.
c. 41.

(2) Nothing in this Measure shall affect the provisions of the Parish of Manchester Division Act, 1850.

Charitable
trusts.

31. Nothing in this Measure shall take away abridge or affect any power or jurisdiction of the Board of Charity Commissioners for England and Wales, or of the Board of Education, or enable the Commissioners to deal with any endowment subject to the jurisdiction of either of those Boards without the consent of the Board concerned.

Repeals.

32.—(1) The enactments mentioned in the Schedule to this Measure are hereby repealed to the extent specified in the third column of that Schedule :

Provided that—

- (a) nothing in this repeal so far as it relates to any of the provisions of the Church Building Acts, 1818 to 1884, regulating ecclesiastical districts formed under those Acts, shall affect the continuance of those provisions for such time and in relation to such matters as are provided in section eight of this Measure ;
- (b) nothing in this repeal shall affect the validity of any existing agreement or assignment of any right of patronage nor the exercise of any right in pursuance thereof ;
- (c) nothing in this repeal shall affect any existing right to charge or recover rents for sittings in any church or any scale fixing such rents.

(2) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889 with regard to the effect of repeals. 52 & 53 Vict.
c. 63.

(3) "Existing" in this section means existing at the time of the passing of this Measure.

33. This Measure shall extend to the whole of the Provinces of Extent. Canterbury and York except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measure, 1931, or either of them, in accordance with that Measure. 21 & 22 Geo. 5.
No. 4.

34. This Measure may be cited as the New Parishes Measure, Short title. 1943.

SCHEDULE.

REPEALS.

Session and Chapter.	Short Title.	Extent of repeal.
58 Geo. 3, c. 45.	The Church Building Act, 1818.	The whole Act.
59 Geo. 3, c. 134.	The Church Building Act, 1819.	The whole Act.
3 Geo. 4, c. 72.	The Church Building Act, 1822.	The whole Act except section thirteen and section twenty-eight; and section thirteen from "and it shall be lawful" to "finally completed".
5 Geo. 4, c. 103.	The Church Building Act, 1824.	The whole Act.
7 & 8 Geo. 4, c. 72.	The Church Building Act, 1827.	The whole Act.
1 & 2 Will. 4, c. 38.	The Church Building Act, 1831.	The whole Act.
2 & 3 Will. 4, c. 61.	The Church Building Act, 1832.	The whole Act.
1 & 2 Vict. c. 106.	The Pluralities Act, 1838.	In section twenty-six the words "or be constituted separate parishes for ecclesiastical purposes", the words "either be constituted a separate benefice by itself or," the words from "or to any other adjoining" to "form a separate parish or benefice", and the words "or be constituted a separate parish for ecclesiastical purposes".
1 & 2 Vict. c. 107.	The Church Building Act, 1838.	The whole Act except section fourteen.
2 & 3 Vict. c. 49.	The Church Building Act, 1839.	Sections one to five and eight to eleven.
3 & 4 Vict. c. 60.	The Church Building Act, 1840.	The whole Act.
6 & 7 Vict. c. 37.	The New Parishes Act, 1843.	The whole Act except section six; and in section six the words "notwithstanding the charge by this Act created", the words from "and that the consent" to "notwithstanding such charge" and the words from "unless it be deemed" to "hereby empowered to do".
7 & 8 Vict. c. 56.	The Church Building (Banns & Marriages) Act, 1844.	The whole Act.
7 & 8 Vict. c. 94.	The New Parishes Act, 1844.	The whole Act.
8 & 9 Vict. c. 70.	The Church Building Act, 1845.	The whole Act.

Session and Chapter.	Short Title.	Extent of repeal.
9 & 10 Vict. c. 68.	The Church Building (Burial Service in Chapels) Act, 1846.	The whole Act.
11 & 12 Vict. c. 37.	The Church Building Act, 1848.	The whole Act.
13 & 14 Vict. c. 94.	The Ecclesiastical Commissioners Act, 1850.	Section twenty-seven.
14 & 15 Vict. c. 97.	The Church Building Act, 1851.	The whole Act.
17 & 18 Vict. c. 32.	The Church Building Act, 1854.	The whole Act.
19 & 20 Vict. c. 104.	The New Parishes Act, 1856.	The whole Act.
32 & 33 Vict. c. 94.	The New Parishes Acts and Church Building Acts Amendment Act, 1869.	Sections one, eight, ten, eleven, twelve and thirteen.
47 & 48 Vict. c. 65.	The New Parishes Acts and Church Building Acts Amendment Act, 1884.	The whole Act.

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FOR

Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E., Controller of His Majesty's Stationery Office
and King's Printer of Acts of Parliament